



CHAPTER liii.

An Act to confirm a Provisional Order under the Inclosure Acts 1845 to 1899 relating to Gosford Green in the City of Coventry and the Parish of St. Michael Without Coventry and for purposes incidental thereto. A.D. 1914.
[8th July 1914.]

WHEREAS the Board of Agriculture and Fisheries did in pursuance of the Inclosure Acts 1845 to 1899 issue in the year nineteen hundred and thirteen the Provisional Order set forth in the First Schedule hereto for the Regulation of the Common known as Gosford Green in the City of Coventry and the Parish of St. Michael Without Coventry and in a special report certified that it was expedient that the same should be confirmed by Parliament: 8 & 9 Vict.
c. 118 &c.

And whereas a Committee of the House of Commons to which the said Provisional Order was referred recommended that the same should be confirmed without modification:

And whereas it is expedient that the agreement dated the eighth day of April one thousand nine hundred and thirteen which is recited in the said Provisional Order and a copy of which is set forth in the Second Schedule to this Act should be confirmed by Parliament:

And whereas the said Regulation cannot be proceeded with without the previous authority of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said Provisional Order of Regulation set forth in the First Schedule to this Act is hereby confirmed. Order confirmed.

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—
Agreement
confirmed.

2. The said agreement of the eighth day of April one thousand nine hundred and thirteen is hereby confirmed and made binding upon the parties thereto and may and shall be carried into effect accordingly.

Short title.

3. This Act may be cited as the Commons Regulation (Gosford Green) Provisional Order Confirmation Act 1914.

FIRST SCHEDULE.

A.D. 1914.

Provisional Order for the Regulation of Gosford Green.

WHEREAS the Mayor Aldermen and Citizens of the City of Coventry (herein-after referred to as "the Corporation") being persons interested in certain lands called or known as Gosford Green in the parishes of Coventry and St. Michael Without Coventry in the county of Warwick (herein-after referred to as "the common") such lands being a common within the meaning of the Inclosure Acts 1845 to 1899 made application to the Board of Agriculture and Fisheries (herein-after referred to as "the Board") to issue a Provisional Order for the regulation of the common and to certify that it is expedient that such Provisional Order should be confirmed by Parliament:

And whereas it was made to appear to the Board that the persons making the said application represented at least one-third in value of such interests in the common as are proposed to be affected by the Provisional Order:

And whereas the Board having taken the said application into consideration were satisfied that a *primâ facie* case had been made out and that regard being had to the benefit of the neighbourhood as well as to private interests it was expedient to proceed further in the matter and accordingly ordered a local inquiry to be held by an officer of the Board:

And whereas the said officer having caused public notice to be given as required by the said Acts held pursuant to such notice public meetings in accordance with the requirements of the said Acts to hear all persons desirous of being heard on the subject-matter of the said application and any information or evidence which might be offered in relation thereto and inquired into the correctness of the statements in the said application and otherwise into the expediency of making the Provisional Order applied for and into the nature of the provisions to be inserted in such Provisional Order:

And whereas the said officer inspected the common as required by the said Acts:

And whereas the said officer duly reported in writing to the Board the result of the local inquiry and of the public meetings held by him together with all the information and other matters required by the said Acts:

And whereas the provisions of the said Acts have been in all respects complied with:

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— And whereas the Board have prepared and sealed a map showing the reputed boundaries of the common which is thereon coloured green :

And whereas the Corporation as Lords of the Manor of Coventry are entitled to the soil of the common :

And whereas the Freemen of the said City of Coventry (hereinafter referred to as "the Freemen") claim to be exclusively entitled to the rights of pasturage or other common rights over and upon the common :

And whereas the Corporation as the urban sanitary authority of the said city to which the common is suburban within the meaning of the said Acts have with the sanction of the Board undertaken to contribute out of their funds such sums as may from time to time be necessary for the maintenance improvement and management of the common as a place of recreation :

And whereas the Corporation have entered into an Agreement dated the 8th day of April 1913 with certain persons known as the Freemen's Trustees acting on behalf of the Freemen that all the rights of the Freemen over and upon the common shall be extinguished in consideration of the annual payment to be made by the Corporation to the said Trustees and of the other terms and conditions contained in the said Agreement but such Agreement cannot be carried into effect without the authority of Parliament and accordingly it is intended to provide for the confirmation of the said Agreement in the Bill to be submitted to Parliament for the confirmation of this Provisional Order as required by the Commons Act 1876 :

And whereas the Board are prepared to certify the expediency of this Provisional Order if the necessary consents are obtained thereto and subject to the confirmation by Parliament as aforesaid of the said recited Agreement :

Now therefore the Board being satisfied that regard being had to the benefit of the neighbourhood as well as to private interests it is expedient to proceed further in the matter do by virtue of the powers in this behalf given to them by the Inclosure Acts 1845 to 1899 and the Board of Agriculture and Fisheries Acts 1889 to 1909 make this their Provisional Order as follows (that is to say):—

PART I.

IMPROVEMENT.

For the improvement of the common the following provisions shall be put in force :—

The Corporation shall be the Conservators of the Common and as such Conservators shall have power—

- (1) To drain manure and level the common where necessary for the purpose of improving the common for purposes of recreation ;

(2) To make byelaws and regulations (subject to any such confirmation as is by law required) for— A.D. 1914.

(i) Preventing nuisances on the common or protecting it therefrom or for keeping order thereon ;

(ii) Preventing malicious or wanton injury to property therein or thereon ;

(iii) Regulating the exercise of the privileges hereinafter reserved of access recreation and playing of games on the common ; and

(3) Generally to manage the common.

PART II.

PROVISIONS FOR THE BENEFIT OF THE NEIGHBOURHOOD.

For the benefit of the neighbourhood—

(a) There shall be reserved subject to such reasonable byelaws and regulations for the prevention of nuisances thereon as may be made by the Conservators and confirmed as by law required—

(1) A right of free access at all times to the common and a privilege of recreation by walking and enjoying air and exercise thereon ; and

(2) A privilege of playing games on such parts of the common as may from time to time be appointed by the Conservators for the purpose and the Conservators may cause any part or parts for the time being so appointed to be temporarily enclosed with posts and chains or other open fences :

(b) The Conservators shall have power to set out make and maintain carriage-roads and footpaths over the common in such directions as may appear to them most commodious.

PART III.

AWARD.

For the purpose of giving complete effect to this Provisional Order there shall be inserted in the award to be made in pursuance of the Inclosure Acts 1845 to 1899 such provisions not inconsistent with those Acts as the Board shall think desirable and proper.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this eighth day of April nineteen hundred and thirteen.

(Signed) R. H. REW,
(L.S.) Assistant Secretary.

A.D. 1914.

SECOND SCHEDULE.

*Agreement between the Corporation of Coventry and
the Trustees of the Freemen of the City of Coventry dated
the 8th April 1913.*

AN AGREEMENT made this 8th day of April 1913 between the MAYOR ALDERMEN AND CITIZENS OF THE CITY OF COVENTRY (herein-after called "the Corporation") of the one part and FREDERICK BIRD chemist THOMAS WILLIAM LIGGINS builder DAVID YARDLEY ribbon dresser WILLIAM JOHN WORMELL slater HENRY MANDER watch tool dealer FRANK SNAPE butcher ALEC TURNER watch manufacturer FRED LEE watch jewel manufacturer JAMES ARCH gentleman and WILLIAM SHORTLEY journalist all of the City of Coventry being the Trustees of the Estates of the Freemen and Widows of Freemen of the said City of Coventry under the Coventry Inclosure Award 1860 (herein-after called "the Freemen's Trustees") of the other part.

WHEREAS the Corporation being persons interested in certain lands called or known as Gosford Green in the Parishes of Coventry and St. Michael Without Coventry in the County of Warwick (herein-after referred to as "the common") such lands being a common within the meaning of the Inclosure Acts 1845 to 1899 have made application to the Board of Agriculture and Fisheries to issue a Provisional Order for the regulation of the common and to certify that it is expedient that such Provisional Order should be confirmed by Parliament:

And whereas the Freemen of the said City of Coventry (herein-after referred to as "the Freemen") being the persons exclusively entitled to the rights of pasturage or other common rights over and upon the common have agreed to concur through the Freemen's Trustees in the said application of the Corporation upon the terms herein-after appearing Now it is hereby agreed as follows:—

The Freemen concur in the said application of the Corporation upon the following terms:—

1. The Corporation and their successors to hold the common in trust as a place for exercise and recreation for the inhabitants of the City of Coventry and neighbourhood.
2. The herbage of the common with all the rights and privileges appertaining thereto to belong to the Corporation in consideration of a rent of twenty pounds per annum,

3. The rent to be paid to the Freeman's Trustees and to be applied by them in the manner directed by the award with respect to rents arising from the Freeman's portion of the enclosed lammas lands. A.D. 1914. —

4. The Corporation within five years at their own expense to level drain fence plant and ornament the common and make good and substantial roads over and across the same the work to be executed in accordance with a plan to be submitted by the Corporation to the surveyor of the Trustees.

5. The Corporation at their own expense to keep the common well drained planted and ornamented and the roads fences and grass in good order and condition.

6. The fences to be good and permanent and in accordance with the plan mentioned in clause 4.

7. Several large gates and several hand gates to be provided into the common and the Corporation to deliver to the Trustees such keys or spanners as may be necessary to open such large gates such keys or spanners to be kept by the solicitor of the Trustees Subject as aforesaid the opening and closing of the common to be regulated by the Corporation.

8. Only such parts of the herbage as are required for ornamental purposes to be broken up.

9. All persons (subject as aforesaid) to have free access to the common and to be at liberty to promenade along and over the walks to be laid out thereon and the Freeman and inhabitants of Coventry generally to be allowed to hold public meetings without the necessity of first obtaining the consent of any person or persons whomsoever but no horses cattle carts or carriages to be allowed at any time upon the common or the walks thereof.

10. The Corporation in the future not to let any part of the common for the purposes of the Coventry Great Fair unless the Corporation pay to the Freeman one third part of the net revenue derived from such letting.

11. Neither the Freeman nor the Trustees to be put to any costs charges or expenses in any proceedings necessary for carrying the above arrangements into effect and should the present proposals not be carried out the costs and expenses incurred by the Freeman or the Trustees to be borne by the Corporation.

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In witness whereof the Corporation have hereunto caused their Corporate Seal to be affixed and the Freeman's Trustees have hereunto set their hands and seals the day and year first before written.

The Corporate Seal of the Mayor
Aldermen and Citizens of
the City of Coventry was
hereunto affixed and the same
countersigned by William
Fitzthomas Wyley Esquire
Mayor in the presence of

C. H. WOOD

Clerk to

Mr. GEORGE SUTTON

Town Clerk

Coventry.

W. F. WYLEY

Mayor.

(L.S.)

Signed sealed and delivered by
the said Thomas William
Liggins David Yardley William
John Wormell Henry Mander
Frank Snape Alec Turner
Fred Lee James Arch and
William Shortley in the
presence of

FRED LIGGINS

Clerk to Mr. H. JOHNSON

Solicitor

Coventry.

THOMAS WILLIAM LIGGINS. (L.S.)

DAVID YARDLEY. (L.S.)

WILLIAM JOHN WORMELL. (L.S.)

HENRY MANDER. (L.S.)

FRANK SNAPE. (L.S.)

ALEC TURNER. (L.S.)

FRED LEE. (L.S.)

JAMES ARCH. (L.S.)

WILLIAM SHORTLEY. (L.S.)

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